



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

FEB 19 1991

DOT-E 10544
(FIRST REVISION)

1. U.S. Department of Defense, Washington, DC, is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of Class A explosives for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of certain explosives in cargo aircraft, and provide no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on applications of the Department of Defense (U.S. Department of the Navy) dated February 12 and 14, 1991, submitted in accordance with 107.113. Granting of this exemption is in the national interest, based on a statement by the Department of the Navy, and supplemental letters dated February 15, and 19, 1991.
3. HAZARDOUS MATERIALS (Descriptor and class). Mk 82 Explosive bomb, UN 0034, (EX-8810744); Detonating fuze, UN 0408 (EX-8806602), (EX-8810345); Boosters, UN 0042 (EX-8806649 and (EX-8806717); Projectiles, UN 0168 (EX-8712835); Charges, propelling, for cannon, UN 0242 (EX-8810331); classed as Class A explosives.
4. PROPER SHIPPING NAME (49 CFR 172.101). Explosive bomb; Detonating fuze, Class A; Booster, explosive; Projectiles; Charges, propelling for cannon; as appropriate.
5. REGULATION AFFECTED. 49 CFR 172.101, Column (6) (b), 171.11, 175.3, 175.320.
6. MODES OF TRANSPORTATION AUTHORIZED. Cargo aircraft only.
7. SAFETY CONTROL MEASURES. Packaging, marking and labeling must be in accordance with the International Civil Aviation Organization's (ICAO) Technical Instructions.
8. SPECIAL PROVISIONS.
 - a. A copy of this exemption must be carried aboard each aircraft used to transport packages covered by this exemption.
 - b. The carriers must conform to the requirements of 49 CFR 175.320(b), as appropriate.

- c. Flights are scheduled to depart Cecil Field Naval Air Station, Jacksonville, Fl or Cherry Point Marine Corps Air Station, New Bern, North Carolina destined for Dhahran, Saudi Arabia, with transportation provided by Air Charter Systems or Southern Air Transport.
- d. This exemption does not grant authority to use foreign controlled airspace or airports outside the United States.
- e. All fuses must be loaded as far away as possible from the other explosives.
- f. The explosives must be loaded and unloaded by or under the direct supervision of Department of Defense personnel.
- g. This exemption authorizes the shipment of the Class A explosives identified in paragraph 3; general cargo and the following Class C explosives:

Percussion fuze, (EX-8806684); Time fuze, (EX-8806659, EX-8806661 and EX-8806658); Actuating cartridges (EX-8710756); Small arms ammunition, (EX-8501077, EX-8501077A); Cartridge, signal (EX-8807927); Cartridges for weapons, inert projectile (EX-8807855); classed as Class C explosives.

9. REPORTING REQUIREMENTS: Any incident involving fire, explosion, or loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. April 1, 1991.

Issued at Washington, D.C.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

FEB 19 1991

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FAA.